



March 15, 2025

Faisal D'Souza
NCO
2415 Eisenhower Avenue
Alexandria, VA 22314
Via email

RE: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear Faisal D'Souza:

Thank you for the opportunity to comment on the development of an Artificial Intelligence Action Plan. The American Foundation for the Blind (AFB) is a national nonprofit that creates equal opportunities and expands possibilities for people who are blind, have low vision, and are deafblind through advocacy, thought leadership, and strategic partnerships. AFB's research team recently conducted a study using a modified Delphi methodology to understand what experts agree on when considering how AI will affect people with disabilities.¹ The experts, who hailed from academia, industry, and policy professions, agree that AI presents unique opportunities but also poses some significant risks. Our research team is following this initial study with a survey that explores directly the experiences of individuals with disabilities as more people begin to adopt AI-powered technologies for education, employment, and independent living.

AI could power transformative new assistive technologies that support employment, education, and independent living.

The experts in our study agreed that there are technologies that will clearly benefit from the incorporation of AI to provide on-demand information and interpretation. They clearly identified transportation as a sector that could benefit from AI as computer vision and object recognition technologies become cheaper and more reliable. The use of apps that provide instantaneous and accurate environmental information is likely to improve

¹ Silverman, A., Baguhn, S., Vader, M., Romero, E., & So, C.H.P. (2025). Empowering or Excluding: Expert Insights on Inclusive Artificial Intelligence for People with Disabilities. *American Foundation for the Blind*. <https://www.afb.org/research-and-initiatives/empowering-or-excluding>

navigation in unfamiliar environments for some people who are blind. Such technologies could also improve independent living and employment by making it easier to identify unknown objects, such as when reading mail or identifying the buttons on inaccessible office equipment. Additionally, the use of technology to identify at scale the accessibility of a state or locality's sidewalk network has the potential to speed up improvements to pedestrian network connectivity and safety for nondrivers.

There were additional areas that experts identified as potential benefits for people with disabilities, but whose benefits depend on how the overall software, program, or use case is defined. For example, autonomous vehicles have been touted as transformative for independent mobility for many blind people who typically cannot travel alone in a vehicle. Being a nondriver in our current transportation system creates dependencies on friends or families or requires people to spend extra time waiting on slow or unreliable transit systems.² Autonomous vehicles could make reliable, quick travel more available to nondrivers. However, the pool of experts expressed variation in their assessment of the benefits of autonomous vehicles for several reasons. Some of the experts expressed concerns that the per-trip cost of using autonomous vehicles will be unaffordable for most people who are blind, many of whom are underemployed, live in rural areas, or are older adults on fixed incomes. Others raised questions about the cost of investing in autonomous vehicles compared to the cost of building robust public transportation systems while others suggested that these investments should not be mutually exclusive. Finally, some of the experts did not think that sufficient data has been collected to understand whether AVs or other transportation uses of AI will protect the pedestrian safety of people with disabilities.

AI poses risks of inaccuracy, discrimination, and inaccessibility.

While we remain hopeful that AI will be used to maximize independence and opportunity for people who are blind, the experts in our study identified clear risks to people who are blind. First, AFB has extensively documented the inaccessibility of numerous software applications and website interfaces and the resulting harms that such inaccessibility poses.³ In this study, our AI expert pool was skeptical that students with disabilities will be

² O'Day, B., Chanes-Mora, P., & Roth, M. (2020). Project VISITOR: Phase Two. *American Foundation for the Blind*. <https://www.afb.org/sites/default/files/2020-04/Project-VISITOR-Phase-Two-Report-Final.pdf>

³ Silverman, A., Baguhn, S., Amorosino, B., & Carranza, R. (2023). Barriers to Digital Inclusion: Digital Access Barriers for Americans who are blind, have low vision, or are deafblind. *American Foundation for the Blind*. <https://afb.org/research-and-initiatives/bdis-series/barriers-digital-inclusion-survey>

able to fully participate in the use of educational technology that incorporates AI because of the problematic record of educational technology companies in delivering accessible technology interfaces. This skepticism is supported by research about remote schooling that found that blind students were expected to use numerous inaccessible online course materials.⁴ In addition, AFB found that more than forty percent of respondents from an earlier study reported seeking out a different businesses when apps or websites are inaccessible, about 65% could not complete tasks at all, and about 85% reported wasting time to solve the inaccessibility barrier.⁵ Another study found that blind people may spend 2.4 additional hours per week trying to use websites that are otherwise accessible to sighted people.⁶ Thus, it is imperative that software interfaces that incorporate AI or that teach AI literacy skills be made fully accessible to people who are blind.

Second, the experts in our AI study agreed that some uses of AI pose particular risks of discrimination or bias. For example, job screening applications may not be designed to account for the characteristics of disabled job applicants. These biases range from the unique employment situations that people with disabilities may have (e.g. gaps in employment), explicit bias (e.g. rejecting any applications that mention disability), interactive testing that does not allow for reasonable accommodations (e.g. use of assistive technology or the need for a nonvisual interface), or video or image recognition biases (e.g. an automated interview feature that penalizes certain eye gazes or speech patterns). In addition, the experts were concerned that healthcare or insurance decision tools are more likely to deny care to people with disabilities who often need both more frequent care and more unusual care. Attempts to economize healthcare through AI run the risk of reducing or slowing access to medical care for people with disabilities because AI favors average diagnostic cases or typical health profiles. The representativeness of training data and the weighting of models plays a role in determining whether a decision-making tool has a disability-related bias.

Third, the use cases of AI that will benefit people who are blind require AI to achieve a high level of consistent accuracy and quality. If a blind person needs to use a computer vision

⁴ Silverman, A. M., Munguia Rodriguez, G., Rhoads, C. R. & Bleach, K. (2022). Access and Engagement III: Reflecting on the Impacts of the COVID-19 Pandemic on the Education of Children Who Are Blind or Have Low Vision. American Foundation for the Blind. *Access and Engagement: Examining the Impact of COVID-19 on Students Birth-21 with Visual Impairments, Their Families, and Professionals in the United States and Canada*. American Foundation for the Blind. <https://www.afb.org/research-and-initiatives/education/covid19-education-research/access-and-engagement-iii/access>

⁵ Silverman et al (2023).

⁶ Silverman, A. M., Abdolrahmani, A., Baguhn, S. J., Carranza, R. R. & Amoroso, B. B. (2024). Barriers to Digital Inclusion 2: Documenting digital access challenges for people who are blind or have low vision. American Foundation for the Blind. <https://afb.org/research-and-initiatives/bdis-series/barriers-digital-inclusion-2>

app to identify where they are or what something says, the standard of accuracy must be high in part because someone who is blind may not be able to independently judge the accuracy of the visual description. As an example, if a computer vision app reports that the women's restroom is on the left, but it is actually on the right, trusting the app could result in embarrassment or confrontation. While AI models today tend to report their answers with a high degree of confidence, performance disparities or hallucinations may be more likely to affect people with disabilities who are unable to independently assess the accuracy of generative outputs, and automation bias may lead individuals to overly trust the outputs of AI based on marketing claims.

The federal government should promote research, innovation, oversight, and workforce development to promote the benefits and minimize harms from AI use.

Certain uses of artificial intelligence require greater scrutiny to ensure that outcomes are fair for every American. AFB urges the administration to develop an AI action plan that accounts for variable benefits and risks of AI in different use cases. The use of AI to make decisions about funding, benefits eligibility, traffic safety, or employment poses greater economic and civil rights risks than the use of AI for general writing tasks, such as brainstorming or editing a document. The experts in our study, including those in industry, agreed that the government should enact AI regulations that are proactive, account for the harms of algorithmic bias, and include strong privacy and accessibility provisions.

Federal uses of AI must be built on inclusive datasets, properly weighted models, auditing and testing, and risk mitigation. If the government uses AI to make programmatic decisions or to create an information chatbot for employees or the public, it is imperative that the AI models produce consistently accurate information supported by the law and the government's guidance on implementing the law. That information should be supported by citations to help users understand more about the model's "reasoning" and how to seek further information. For example, it was concerning that when New York City developed a chatbot, it produced confident answers that claimed landlords could discriminate against renters, that funeral homes could conceal prices, and that employers could withhold tips from employees in contravention of the law.⁷

⁷ Lecher, C. (March 29, 2024). NYC's AI Chatbot Tells Businesses to Break the Law. *The Markup*. <https://themarkup.org/news/2024/03/29/nycs-ai-chatbot-tells-businesses-to-break-the-law>

In addition, a number of algorithmic models used for determining child welfare risk have been identified as using biased data, arbitrary weights, and opaque disclosures.⁸ For example, parents with disabilities in Pennsylvania lost custody of their child after taking their sick child to the hospital, and they suspect that the child services agency used an automated risk calculation system which flagged their unrelated record of having disabilities as a risk factor in declaring them unfit to care for their child.⁹ In Michigan, the Michigan Integrated Data Automated System incorrectly accused thousands of people of unemployment insurance fraud, resulting in citizens losing their homes, filing for bankruptcy, and having to pay for lawyers to defend against the false claims.¹⁰ The federal government should ensure that any algorithmic decision making systems do not produce false information or improperly flag individuals as unqualified or high risk based on unrelated or inappropriate individual characteristics

The federal government should invest in research and development into uses of AI that maximize the benefits of AI and create tools that measure potential harms. The AI Action Plan should utilize fully the resources of the National Institute of Standards and Technology and other scientific agencies to carry out the work begun during President Trump's first administration to develop voluntary industry standards for identifying and remediating risks within AI models. In industries such as healthcare, there is currently a substantial lack of investment in the tools needed to verify that people with disabilities have the same health outcomes from the use of AI models as nondisabled people. By prioritizing research investments and funding for responsible AI model development, the government can drive innovation that serves the greatest number of Americans.

STEM education must be accessible to people who are blind or have low vision. The Trump administration should ensure that blind students are able to learn science, technology, and mathematics from the earliest level of schooling, so that careers in AI development are open to all. Our research has identified frustrated parents who report that their children are not given the opportunity to participate in science lessons because the curricular materials

⁸ Trail, M. (February 6, 2024). Algorithmic Decision-Making in Child Welfare Cases and Its Legal and Ethical Challenges. *The American Bar Association*.

<https://www.americanbar.org/groups/litigation/resources/newsletters/childrens-rights/winter2024-algorithmic-decision-making-in-child-welfare-cases/>

⁹ Ho, S. & Burke, G. (January 31, 2023). Child welfare algorithm faces Justice Department scrutiny. *Associated Press*. <https://apnews.com/article/justice-scrutinizes-pittsburgh-child-welfare-ai-tool-4f61f45bfc3245fd2556e886c2da988b>

¹⁰ Charette, R. (January 24, 2018). Michigan's MiDAS Unemployment System: Algorithm Alchemy Created Lead, Not Gold. *IEEE Spectrum*. <https://spectrum.ieee.org/michigans-midas-unemployment-system-algorithm-alchemy-that-created-lead-not-gold>

are inaccessible.¹¹ Others have reported concerns that sighted children are encouraged to use the computer well before blind children receive even basic computer and assistive technology skills training.¹² STEM education accessibility is imperative for school age children as well as in computer science programs at universities. Enforcement of the Individuals with Disabilities Education Act, the Americans with Disabilities Act, and Section 504 of the Rehabilitation Act contributes to ensuring that blind students are able to become engineers and developers who create AI models and software.

Given that not every job seeker aspires to become a developer, it is also imperative that people who are blind or have low vision can benefit from advances in AI in the employment setting. As our economy transitions to greater use of AI software, workers who are skilled at using AI may have an advantage over workers who do not understand or cannot use AI. For that reason, AI literacy and upskilling courses must be accessible to people with disabilities regardless of whether they are provided by the vocation rehabilitation system, workforce development programs, employers, or a community college or university system.

We appreciate the opportunity to contribute to the Administration's action plan on AI and urge the administration to adopt a comprehensive plan that promotes the AI benefits for and use by people who are blind, have low vision, or have other disabilities. A coordinated whole-of-government approach to accessibility, data representation, and workforce development will improve the opportunities for blind people to receive and receive a quality education and compete in the American economy. If you have any questions or if we can be of further assistance, please do not hesitate to reach out to Sarah Malaier at

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Sincerely,

Stephanie Enyart
Chief Public Policy and Research Officer

¹¹ Rosenblum, L. P., Chanes-Mora, P., Fast, D., Kaiser, J. T., Wild, T., Herzberg, T. S., Rhoads, C. R., Botsford, K. D., DeGrant, J. N., Hicks, M. A. C., Cook, L. K., & Welch-Grenier, S. (2021). Access and Engagement II: An Examination of How the COVID-19 Pandemic Continued to Impact Students with Visual Impairments, Their Families, and Professionals Nine Months Later, American Foundation for the Blind.

¹² Silverman et al (2022).